

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Moussa Fofana, Thierno Bah, Abdoulai Bah, Tarik Kuta, :
Mohamed Diop, Bangaly Doumbia and Biyagi Jawara :

Plaintiffs, :

-against- :

Index Number:
Date Purchased:
Date Filed:

SUMMONS

Plaintiff DIOP's residence

City of New York, New York City Police Department, :
Police Officer Eula Harris, Shield 9247 of the 44 Precinct :
Police Officer Wilfredo Benitez, Shield 5619 of the 44 :
Precinct and New York City Police Officers John Doe, :Plaintiff Fofana's residence
is:
530 East 169 Street
Bronx, NY 10456

Defendants :

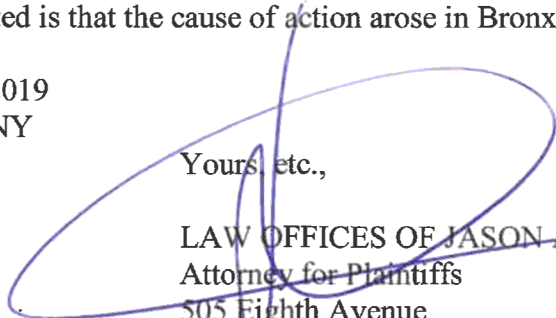
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: August 31, 2019
New York, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Eula Harris, Shield 9247 of the 44 Precinct

Police Officer Wilfredo Benitez, Shield 5619 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Moussa Fofana, Thierno Bah, Abdoulai Bah, Tarik Kuta, :
Mohamed Diop, Bangaly Doumbia and Biyagi Jawara :

VERIFIED COMPLAINT

Plaintiffs, :

-against- :

:
City of New York, New York City Police Department, :
Police Officer Eula Harris, Shield 9247 of the 44 Precinct :
Police Officer Wilfredo Benitez, Shield 5619 of the 44 :
Precinct and New York City Police Officers John Doe, :
-----X

Plaintiffs, by and through their attorney, JASON A. STEINBERGER, Esq, for their complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Moussa Fofana, (hereinafter referred to as "FOFANA") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Thierno Bah, (hereinafter referred to as "T. BAH") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Abdoulai Bah, (hereinafter referred to as "A. BAH") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Tarik Kuta (hereinafter referred to as "KUTA") is a resident of Bronx County, State of New York.
5. That at all times hereinafter mentioned, Plaintiff Mohamed Diop (hereinafter referred to as "DIOP") is a resident of Bronx County, State of New York.

6. That at all times hereinafter mentioned, Plaintiff Bangaly Doumbia (hereinafter referred to as “DOUMBIA”) is a resident of New York County, State of New York.

7. That at all times hereinafter mentioned, Plaintiff Biyagi Jawara (hereinafter referred to as “JAWARA”) is a resident of Bronx County, State of New York.

8. That at all times hereinafter mentioned, Police Officer Eula Harris, Shield 9247 of the 44 Precinct, (hereinafter referred to as “HARRIS”) was employed by the New York City Police Department.

9. That at all times hereinafter mentioned, Police Officer Wilfredo Benitez, Shield 5619 of the 44 Precinct, (hereinafter referred to as “BENITEZ”) was employed by the New York City Police Department.

10. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the officers involved in the arrest of Plaintiffs, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

11. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

12. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

13. That on or about January 4, 2019, notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

14. That within one year and ninety days from the date of incident, Plaintiffs each attended a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

15. That on or about December 28, 2018 at approximately 4:45PM in the vicinity of 1310 Sheridan Avenue, Bronx, NY Plaintiffs were attempting to visit a friend when they were stopped, handcuffed and arrested by HARRIS and DOES.

16. That at no time did Plaintiffs engage in any unlawful or illegal behavior.

17. That at no time did Plaintiffs trespass inside of 1310 Sherdian Avenue, Bronx NY on December 28, 2018.

18. That at no time did Plaintiffs resist arrest.

19. That after Plaintiffs were arrested, they were transported to the 44 precinct.

20. That while Plaintiffs were inside of said precinct, Plaintiffs were held in a holding cell occupied with other males for several hours.

21. That after several hours Plaintiff was removed to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.

22. That while Plaintiffs were held at Bronx County Central Booking, they were held in a cell with other makes for several hours.

23. That on December 30, 2018 Plaintiffs were each arraigned in Bronx Criminal Court and charged with Criminal Trespass in the Second Degree, Criminal Trespass in the Third Degree, Trespass and Resisting Arrest.

24. That at the time of their arraignment, each Plaintiff was released on their own recognizance.

25. That on and between December 30, 2018 and July 30, 2019 Plaintiffs made several court appearances until the matter was dismissed upon application of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

26. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 25, as if more fully stated herein at length.

27. That Defendants acted with actual malice toward Plaintiff FOFANA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

28. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

29. That as a result of the actions by Defendants, Plaintiff FOFANA was traumatized and fears his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

30. That as a result of the Defendants' actions, Plaintiff FOFANA has been unable to sleep.

31. That as a result of the Defendants' actions, Plaintiff FOFANA was forced to miss multiple days of school.

32. That as a result of the Defendants' actions, Plaintiff FOFANA was forced to miss multiple days of work.

33. That as a result of the Defendants' actions Plaintiff FOFANA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

34. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff FOFANA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

36. Defendants having no lawful authority to arrest Plaintiff FOFANA, did, nevertheless, unlawfully arrest Plaintiff FOFANA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff FOFANA is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST THE DEFENDANTS

37. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Defendants conspired to violate Plaintiff FOFANA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff FOFANA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

39. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. Plaintiff FOFANA was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff FOFANA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff FOFANA by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff FOFANA. Plaintiff FOFANA is thus entitled to compensatory and exemplary damages.

41. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

42. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff trespassed. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

43. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

45. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of thier employment.

46. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

47. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

48. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

49. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

50. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was

dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

51. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

52. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

53. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

54. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

55. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number

2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

56. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

57. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

58. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

59. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou KUTA, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

60. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille

Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

61. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

62. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 61, as if more fully stated herein at length.

63. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff FOFANA. Plaintiff FOFANA is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

64. FOFANA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 63, as if more fully stated herein at length.

65. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff FOFANA.

66. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff FOFANA.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

67. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66 as if more fully stated herein at length.

68. That Defendants acted with actual malice toward Plaintiff T. BAH and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff T. BAH.

69. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

70. That as a result of the actions by Defendants, Plaintiff T. BAH was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

71. That as a result of the Defendants' actions, Plaintiff T. BAH has been unable to sleep.

72. That as a result of the Defendants' actions, Plaintiff T. BAH was forced to miss multiple days of school.

73. That as a result of the Defendants' actions, Plaintiff T. BAH was forced to miss multiple days of work.

74. That as a result of the Defendants' actions Plaintiff T. BAH sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

75. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff T. BAH as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

77. Defendants having no lawful authority to arrest Plaintiff T. BAH, did, nevertheless, unlawfully arrest Plaintiff T. BAH with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff T. BAH is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

78. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77, as if more fully stated herein at length.

79. Defendants conspired to violate Plaintiff T. BAH's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff T. BAH is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

80. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 79, as if more fully stated herein at length.

81. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff T. BAH to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff T. BAH by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff T. BAH. Plaintiff T. BAH is thus entitled to compensatory and exemplary damages.

82. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

83. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff trespassed. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

84. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 83, as if more fully stated herein at length.

85. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

86. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

87. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

88. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

89. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

90. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

91. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

92. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in

that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

93. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

94. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

95. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

96. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number 2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

97. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September

22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

98. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

99. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

100. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou KUTA, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

101. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

102. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for

human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

103. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 102, as if more fully stated herein at length.

104. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff T. BAH. Plaintiff T. BAH is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

105. T. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 103, as if more fully stated herein at length.

106. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff T. BAH.

107. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff T. BAH.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

108. A. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 107 as if more fully stated herein at length.

109. That Defendants acted with actual malice toward Plaintiff A. BAH and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff A. BAH.

110. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

111. That as a result of the actions by Defendants, Plaintiff A. BAH was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

112. That as a result of the Defendants' actions, Plaintiff A. BAH has been unable to sleep.

113. That as a result of the Defendants' actions, Plaintiff A. BAH was forced to miss multiple days of school.

114. That as a result of the Defendants' actions, Plaintiff A. BAH was forced to miss multiple days of work.

115. That as a result of the Defendants' actions, Plaintiff A. BAH was forced to miss multiple days of school.

116. That as a result of the Defendants' actions Plaintiff A. BAH sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

117. A. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 116, as if more fully stated herein at length.

118. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff A. BAH as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

119. Defendants having no lawful authority to arrest Plaintiff A. BAH, did, nevertheless, unlawfully arrest Plaintiff A. BAH with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff A. BAH is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

120. A. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 119, as if more fully stated herein at length.

121. Defendants conspired to violate Plaintiff A. BAH's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff A. BAH is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

122. A. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 121, as if more fully stated herein at length.

123. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff A. BAH to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff A. BAH by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff A. BAH. Plaintiff A. BAH is thus entitled to compensatory and exemplary damages.

124. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

125. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff trespassed. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A NINETEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

126. A. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 125, as if more fully stated herein at length.

127. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

128. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

129. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

130. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

131. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

132. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

133. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was

dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

134. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

135. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

136. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

137. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

138. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number

2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

139. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

140. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

141. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

142. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou KUTA, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

143. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille

Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

144. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

145. A. BAH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 144, as if more fully stated herein at length.

146. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff A. BAH. Plaintiff A. BAH is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

147. A. BAH repeat, reiterates and realleges the allegations contained in paragraphs 1 through 146, as if more fully stated herein at length.

148. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff A. BAH.

149. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff A. BAH.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION AS AGAINST DEFENDANTS

150. KUTA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 149 as if more fully stated herein at length.

151. That Defendants acted with actual malice toward Plaintiff KUTA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff KUTA.

152. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

153. That as a result of the actions by Defendants, Plaintiff KUTA was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

154. That as a result of the Defendants' actions, Plaintiff KUTA has been unable to sleep.

155. That as a result of the Defendants' actions, Plaintiff KUTA was forced to miss multiple days of school.

156. That as a result of the Defendants' actions, Plaintiff KUTA was forced to miss multiple days of work.

157. That as a result of the Defendant's actions, Plaintiff KUTA was forced to miss multiple days of school.

158. That as a result of the Defendants' actions Plaintiff KUTA sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS

159. KUTA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 158, as if more fully stated herein at length.

160. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff KUTA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

161. Defendants having no lawful authority to arrest Plaintiff KUTA, did, nevertheless, unlawfully arrest Plaintiff KUTA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff KUTA is entitled to both compensatory and exemplary damages.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

162. KUTA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 161, as if more fully stated herein at length.

163. Defendants conspired to violate Plaintiff KUTA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff KUTA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AS AGAINST DEFENDANTS

164. KUTA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 163, as if more fully stated herein at length.

165. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff KUTA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff KUTA by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff KUTA. Plaintiff KUTA is thus entitled to compensatory and exemplary damages.

166. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

167. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff trespassed. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

168. KUTA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 167, as if more fully stated herein at length.

169. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

170. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

171. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

172. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

173. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

174. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

175. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was

dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

176. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

177. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

178. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

179. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

180. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number

2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

181. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

182. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

183. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

184. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

185. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille

Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

186. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

187. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 186, as if more fully stated herein at length.

188. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff KUTA. Plaintiff KUTA is thus entitled to compensatory exemplary damages.

AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

189. KUTA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 188, as if more fully stated herein at length.

190. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff KUTA.

191. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff KUTA.

AS AND FOR AN TWENTY-NINTH CAUSE OF ACTION AS AGAINST DEFENDANTS

192. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 191 as if more fully stated herein at length.

193. That Defendants acted with actual malice toward Plaintiff DOUMBIA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff DOUMBIA.

194. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

195. That as a result of the actions by Defendants, Plaintiff DOUMBIA was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

196. That as a result of the Defendants' actions, Plaintiff DOUMBIA has been unable to sleep.

197. That as a result of the Defendants' actions, Plaintiff DOUMBIA was forced to miss multiple days of work.

198. That as a result of the Defendants' actions Plaintiff DOUMBIA sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTIETH CAUSE OF ACTION AGAINST DEFENDANTS

199. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 198, as if more fully stated herein at length.

200. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff DOUMBIA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

201. Defendants having no lawful authority to arrest Plaintiff DOUMBIA, did, nevertheless, unlawfully arrest Plaintiff DOUMBIA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DOUMBIA is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION AS AGAINST DEFENDANTS

202. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 201, as if more fully stated herein at length.

203. Defendants conspired to violate Plaintiff DOUMBIA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DOUMBIA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION AS AGAINST DEFENDANTS

204. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 203, as if more fully stated herein at length.

205. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff DOUMBIA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff DOUMBIA by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff DOUMBIA. Plaintiff DOUMBIA is thus entitled to compensatory and exemplary damages.

206. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

207. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff trespassed. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A THIRTY-THIRD CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

208. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 207, as if more fully stated herein at length.

209. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

210. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

211. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

212. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

213. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

214. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

215. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was

dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

216. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

217. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

218. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

219. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

220. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number

2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

221. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

222. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

223. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

224. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydara, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

225. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille

Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

226. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

227. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 226, as if more fully stated herein at length.

228. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DOUMBIA. Plaintiff DOUMBIA is thus entitled to compensatory exemplary damages.

AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

229. DOUMBIA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 228, as if more fully stated herein at length.

230. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DOUMBIA.

231. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DOUMBIA.

AS AND FOR AN THIRTY SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

232. DIOP repeats, reiterates and realleges the allegations contained in paragraphs 1 through 231 as if more fully stated herein at length.

233. That Defendants acted with actual malice toward Plaintiff DIOP and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff DIOP.

234. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

235. That as a result of the actions by Defendants, Plaintiff DIOP was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

236. That as a result of the Defendants' actions, Plaintiff DIOP has been unable to sleep.

237. That as a result of the Defendants' actions, Plaintiff DIOP was forced to miss multiple days of school.

238. That as a result of the Defendants' actions, Plaintiff DIOP was forced to miss multiple days of work.

239. That as a result of the Defendants' actions Plaintiff DIOP sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTY-SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

240. DIOP repeats, reiterates and realleges the allegations contained in paragraphs 1 through 235 as if more fully stated herein at length.

241. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff DIOP as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

242. Defendants having no lawful authority to arrest Plaintiff DIOP, did, nevertheless, unlawfully arrest Plaintiff DIOP with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DIOP is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

243. DIOP repeats, reiterates and realleges the allegations contained in paragraphs 1 through 242, as if more fully stated herein at length.

244. Defendants conspired to violate Plaintiff DIOP's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DIOP is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-NINTH CAUSE OF ACTION AS AGAINST DEFENDANTS

245. DIOP repeats, reiterates and realleges the allegations contained in paragraphs 1 through 244, as if more fully stated herein at length.

246. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff DIOP to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff DIOP by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff DIOP. Plaintiff DIOP is thus entitled to compensatory and exemplary damages.

247. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FORTIETH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

248. DIOP repeats, reiterates and realleges the allegations contained in paragraphs 1 through 247, as if more fully stated herein at length.

249. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

250. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

251. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

252. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

253. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

254. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

255. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

256. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in

that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

257. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

258. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

259. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

260. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number 2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

261. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September

22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

262. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

263. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

264. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydera, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

265. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

266. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for

human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A FORTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

267. DIOP repeats, reiterates and realleges the allegations contained in paragraphs 1 through 266, as if more fully stated herein at length.

268. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DIOP. Plaintiff DIOP is thus entitled to compensatory exemplary damages.

AS AND FOR A FORTY-SECOND CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

269. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 268, as if more fully stated herein at length.

270. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DIOP.

271. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DIOP.

AS AND FOR AN FORTY-THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

272. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 271 as if more fully stated herein at length.

273. That Defendants and DOES acted with actual malice toward Plaintiff JAWARA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff JAWARA.

274. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

275. That as a result of the actions by Defendants, Plaintiff JAWARA was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

276. That as a result of the Defendants' actions, Plaintiff JAWARA has been unable to sleep.

277. That as a result of the Defendants' actions, Plaintiff JAWARA was forced to miss multiple days of school.

278. That as a result of the Defendants' actions, Plaintiff JAWARA was forced to miss multiple days of work.

279. That as a result of the Defendants' actions Plaintiff JAWARA sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A FORTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

280. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 279 as if more fully stated herein at length.

281. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff JAWARA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

282. Defendants having no lawful authority to arrest Plaintiff JAWARA, did, nevertheless, unlawfully arrest Plaintiff JAWARA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff JAWARA is entitled to both compensatory and exemplary damages.

AS AND FOR A FORTY-FIFTH CAUSE OF ACTION AS AGAINST DEFENDANTS

283. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 282, as if more fully stated herein at length.

284. Defendants conspired to violate Plaintiff JAWARA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff JAWARA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FORTY-SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

285. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 284, as if more fully stated herein at length.

286. JAWARA was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff JAWARA to suffer physical and severe emotional distress for which the Defendants are

individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff JAWARA by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff JAWARA. Plaintiff JAWARA is thus entitled to compensatory and exemplary damages.

287. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

288. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff trespassed. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FORTY-SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

289. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 288, as if more fully stated herein at length.

290. At all times pertinent hereto, HARRIS, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

291. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that HARRIS, BENITEZ and DOES committed within the scope of their employment.

292. That the City of New York and New York City Police Department knew that HARRIS targeted members of the 44 precinct, specifically, people of African descent and continued to employ HARRIS.

293. That the City of New York and New York City Police Department knew that BENITEZ targeted members of the 44 precinct, specifically, people of African descent and continued to employ BENITEZ.

294. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Tyrone Igle in that Tyrone Igle brought a lawsuit for false arrest, false imprisonment and malicious prosecution under index number 302834/2015. Despite such, the City of New York and New York City Police Department continued to employ her.

295. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Moutawakil Ourotcha for False Personation on November 25, 2017 in that the arrest was declined to prosecuted by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

296. That the City of New York and New York City Police Department knew that HARRIS falsely arrested Saibo Touray for Attempted Assault on December 2, 2017 in that the case was dismissed on April 4, 2019 by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ her.

297. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Shaquille Holder on September 24, 2011 for trespassing in his own building in that the case was dismissed by the Office of the Bronx District Attorney. Despite such, the City of New York and New York City Police Department continued to employ him.

298. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Halidou Omaru in that Mr. Omaru filed suit against BENITEZ for False Arrest under index number 25528/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

299. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kazeem Lhabik in that Mr. Lhabik filed suit against BENITEZ for False Arrest under index number 22060/2014 and that the City of New York and New York City Police Department settled the claim with a monetary award. Despite such, the City of New York and New York City Police Department continued to employ him.

300. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh for trespass on February 17, 2017 under index number 20014/2016. Despite such, the City of New York and New York City Police Department continued to employ him.

301. That the City of New York and New York City Police Department knew that BENITEZ falsely arrested Kabine Kaba for Disorderly Conduct on September 22, 2017 under claim number 2017PI032475. Despite such, the City of New York and New York City Police Department continued to employ him.

302. That the City of New York and New York City Police Department knew that BENITEZ assaulted Kabine Kaba by spraying him with pepper spray for absolutely no reason on September 22, 2017 in that the incident was captured on video. Despite such, the City of New York and New York City Police Department continued to employ him.

303. That the City of New York and New York City Police Department knew that its police officers, specifically, police officers assigned to the 44 precinct had a policy, practice and custom of falsely arresting innocent people for trespass when they knew such people were not violating any laws.

304. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Jawuan Hubbard, Shield 8746 and Police Officer Vivar Diego, Shield 5613, falsely arrested Deiondre Harris, Laquan Heyward, Joel Baba and Keshon George on October 4, 2014 for trespass when they had a legitimate right to be in the 1426 Walton Avenue.

305. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Francis Flynn, Shield 11320 and Police Officer Anthony Cassase, Shield 28721 falsely arrested Bilali Sidibeh, Muhammed Gumaneh, Mahamadou Hydara, Saibo Sidibeh, Mohamadou Jabbi, Banglay Jawara and Mamadou Diallo on March 26, 2016 for trespass when they had a legitimate right to be in the 1296 Sheridan Avenue.

306. That the City of New York and New York City Police Department knew that police officers from the 44 precinct, specifically, Police Officer Natalia Abreu falsely arrested Shaquille Holder on June 25, 2009 for trespass when they had a legitimate right to be in the 1503 Walton Avenue.

307. The City of New York and New York City Police Department's failure to stop this practice and custom constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A FORTY-EIGHTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT

308. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 307, as if more fully stated herein at length.

309. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff JAWARA. Plaintiff JAWARA is thus entitled to compensatory exemplary damages.

AS AND FOR A FORTY-NINTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT

310. JAWARA repeats, reiterates and realleges the allegations contained in paragraphs 1 through 309, as if more fully stated herein at length.

311. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff JAWARA.

312. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff JAWARA.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction

of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the twenty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the twenty-fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twenty-sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twenty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the twenty-ninth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the thirtieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-first cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction

of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the thirty-third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the thirty-fifth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the thirty-sixth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the thirty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-eighth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the thirty-ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fortieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the forty-first cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the forty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the forty-third cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the forty-fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the forty-fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the forty-sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction

of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the forty-seventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the forty-eighth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the forty-ninth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC



Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: August 31, 2019



Jason A. Steinberger

Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MOUSSA FOFANA, THIerno BAH, ABDOULAI BAH, TARIK KUTA, MOHAMED DIOP, BANGALY DOUMBIA AND BIYAGI JAWARA,

Plaintiffs

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER EULA HARRIS, SHIELD 9247 OF THE 44 PRECINCT, POLICE OFFICER WILFREDO BENITEZ, SHIELD 5619 OF THE 44 PRECINCT AND NEW YORK CITY POLICE OFFICERS JOHN DOE,

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC

505 Eighth Avenue
Suite 701
New York, NY 10018

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF SETTLEMENT at _____ once of the Judges of the within named Court,

on _____ 200 , at _____ m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018

To:
Attorney(s) for